Snowflake Inc.
PURCHASE ORDER

PO NUMBER
5680

DATE
04/03/20

PAYMENT TERMS

SHIPPING TERMS

CURRENCY
USD

CONTRACT

CONTACT
Brian Lin

brian.lin@snowflake.com

Pivot Interiors
3355 Scott BLVD
Suite 110
Santa Clara, CA 95054
Attn: Susan Spielman
sspielman@pivotinteriors.com

Ship To
Snowflake Inc.
4140 2nd Floor
Dublin, CA 94568
Attn: Brian Lin

Bill To
Snowflake Inc.
450 Concar Drive
San Mateo, California 94402
Attn:

Line	Description	Need By Date	Qty	Unit Price	Total
1	Dublin Office FFE / Aeron Task Chairs			188,441.59	188,441.59

188,441.59 USD

An acceptable US invoice shall be an email sent to ap.us@snowflake.com in PDF format and billed to Snowflake Inc. For US invoice or payment questions, please email ap.us@snowflake.com.

To ensure timely processing and acceptance of your invoice: Each invoice MUST reference one and only one PO number (submit a unique invoice for each statement of work or order).

Please update your remit to address and banking information by sending an email to ap.us@snowflake.com.

PO - Terms and Conditions Agreement

Unless Vendor has signed a Snowflake Master Vendor Agreement, this Purchase Order ("PO") and any attachments are the sole agreement between Snowflake, Inc. ("Snowflake" or "Buyer") and any of its subsidiaries or affiliates regarding the goods or services specified in this PO. In the event of any conflict between the terms set forth herein and any Master Vendor Agreement the parties have entered, the terms of the Master Vendor Agreement shall control.

1. Acceptance of Terms: This PO is expressly conditioned on Seller's acceptance of all the terms and conditions set forth herein. Any purported acceptance by Seller which states additional or different terms from those stated in this Order shall be deemed an acceptance by Seller of the terms set forth herein and any such additional or different terms shall be considered material alterations to which Buyer expressly objects and rejects. No modification, alteration or amendment of the terms set forth herein shall be effective unless in writing and signed by authorized representatives of both parties.

2. Performance: Seller shall provide, and Buyer shall accept the goods and services ("Deliverables") described on Exhibit A, which is incorporated herein. Seller shall not increase the price set forth on Exhibit A without the express written consent of Buyer. Should Seller decrease the prices set forth on Exhibit A, the lower price shall apply to all Deliverables not yet delivered at the time of the reduction.

Time is of the essence in the performance of this PO. If the Deliverables are not delivered or provided in the manner and at the times specified herein, Snowflake may, in addition to any other rights and remedies it may have, direct expedited delivery of the Deliverables at Seller's expense or purchase substitute Deliverables, with Seller accepting responsibility for any difference in price or cost associated with such substitution. Seller will promptly advise Snowflake of any anticipated delay in performance, including notice with regard to any goods placed under backorder. Seller's performance is not deemed completed until the Deliverables have been accepted by Snowflake at the destination set forth above.

3. Inspection and Acceptance: Snowflake shall retain the right to inspect all Deliverables prior to final acceptance. No inspection made prior to final acceptance will relieve Seller from responsibility for failure to meet the requirements of this PO and no Deliverables shall be deemed accepted without Snowflake's express written acceptance. If the Deliverables do not meet the applicable specifications and instructions, Seller will promptly re-perform the nonconforming services or provide replacement goods satisfactory to Snowflake at Seller's expense. If Seller cannot provide conforming goods or services within a commercially reasonable time, Snowflake may purchase such goods or services from another source and charge to Seller's account all costs, expenses and damages associated therewith.

4. Invoicing and Payment: Upon completion of its performance, Seller shall provide Buyer with an acceptable invoice. All invoices shall include: (a) the purchase order number; (b) a description of the items, quantities and prices for all goods for which payment is sought; and (c) any discounts to which Buyer is entitled. Discounts shall be computed as of the latest of (i) the scheduled delivery date; (ii) actual delivery; or (iii) the date an acceptable invoice is received. All invoices shall list any taxes, charges, duties, customs, tariffs, etc. separately. Invoices submitted hereunder will be paid according to the payment terms set forth in the table above calculated from receipt of a correct invoice or acceptance of goods or services by Snowflake, whichever is later. Any adjustments in Seller's invoices due to late performance, rejections or other failure to comply with the requirements of this PO may be made by Snowflake prior to payment. Payment does not constitute final acceptance.

5. Changes and Cancellations

5.1. Snowflake may at any time change delivery schedules, designs, quantities and specifications for the Deliverables Snowflake may terminate or suspend this PO in whole or in part at any time at its sole discretion by providing written notice to Seller. Upon receipt of such notice, Seller shall cease its performance immediately.

5.2. If any such change, termination or suspension causes an increase or decrease in the cost or time required for the performance of services or provision of goods hereunder, an adjustment may be made in the price or delivery schedule, or both, and the PO will be modified in writing accordingly. There shall be no adjustment for Buyer's cancellation of any order for standard items. Seller must make all claims for adjustments within thirty (30) days of receipt of Buyer's notice of such change or said claim will be deemed waived.

5.3. Should Seller submit a claim based on Buyers' change, termination or suspension as set forth herein, said claim shall include (i) the cost of the work in progress; and (ii) any costs related to Seller having to pay its suppliers, vendors for Deliverables which cannot be diverted or resold to Seller's other customers. Seller shall take all commercially reasonable steps to mitigate its damages including by placing its goods and services back into inventory for sale to others. In no event shall Seller's claim exceed the amount of the original PO prior to any change, termination or suspension. Buyer shall be entitled to receive all goods and services for which it pays, which will be subject to the terms and conditions set forth herein.

6. Warranty: Seller expressly warrants that the goods or services provided under this PO will be (i) performed according to any specifications and instructions provided by Snowflake; and (ii) merchantable, non-infringing, free from defects and fit and sufficient for the purpose intended. Seller's services will be performed with the highest degree of skill and judgment exercised by recognized professionals performing the same or similar services. These warranties are be in addition to all other warranties, express, implied or statutory and shall survive delivery, acceptance and payment. Buyer shall be entitled to the benefit of any warranties for goods and services provided to Seller by its vendors or suppliers. Should Seller breach the foregoing warranties, Seller shall promptly replace, repair, re-perform or refund the purchase price and cost of shipment for all unacceptable items. Buyer shall have no responsibility for non-conforming goods or

services and Buyer shall have the option to retain any such non-conforming goods or services or return them to Seller at Seller's sole expense.

7. Confidential Information and Publicity: In performing its obligations under this PO, Seller may have access to or acquire from Snowflake confidential and proprietary information about Snowflake, its business activities and operations, its employees, trade secrets or other information which by its nature should reasonably be considered confidential (the "Confidential Information"). Snowflake Confidential Information may only be disclosed to Seller's employees, agents or consultants with a need to know and who are under a written obligation to keep the information confidential. Seller will not disclose Confidential Information to any third party. Seller will use the same degree of care (but no less than a reasonable degree of care) that it uses with regard to its own confidential information to prevent the disclosure of Confidential Information.

Neither party may use the other's name, logo, trademarks or other materials for advertising or other purposes or disclose the existence or terms of this PO without the other party's prior written consent.

8. Intellectual Property

8.1 "Intellectual Property" means all intellectual property and proprietary rights, including without limitation all rights of inventorship and authorship, inventions, patents, patent applications, and know-how, for any product, process, method, machine, manufacture, design, composition of matter, or any new or useful improvement thereof, as well as copyrights, trademark, trade dress and service mark rights and all rights in trade secrets, computer software, proprietary information and data and databases.

8.2 "Snowflake Property" means:

1. Snowflake's Intellectual Property that Snowflake owns prior to the Effective Date of this PO or acquires separately or develops;
2. Intellectual Property conceived, produced or developed by Seller, whether directly or indirectly or alone or jointly with others, in connection with or pursuant to Seller's performance hereunder; and
3. Other Deliverables, goods, or services that are made by Seller through the use of Snowflake's equipment, funds, supplies, facilities, materials and/or Snowflake's proprietary information.

8.3 "Seller Deliverables" means Intellectual Property described by Sections 8.2.2 and 8.2.3 above.

8.4 Seller shall assign and hereby does assign to Snowflake all of its respective rights, title, and interest in the Seller Deliverables and Snowflake shall own all right, title and interest in and to such Seller Deliverables including the rights, title, and interest including all rights of inventorship and authorship, all patents and patent applications, all copyrights, all trademark and service mark rights, all rights in trade secret and proprietary information, all rights of attribution and integrity and other moral rights and all other Intellectual Property rights. Seller Deliverables shall be considered work made for hire.

8.5 With respect to Intellectual Property (1) created or acquired by Seller before the Effective Date of this PO and not assigned pursuant this PO or (2) independently developed by or for Seller as part of Seller's normal business and not developed for or paid for by Snowflake under this or another PO, Seller shall retain all right, title and interest to said Intellectual Property (even if included in the goods and services delivered pursuant to this PO). For all such Intellectual Property included in the Deliverables, Seller grants Snowflake a fully-paid up, perpetual and irrevocable, world-wide, non-exclusive license to: (a) prepare derivative works; and (b) make, use, have made, import, have imported, export, have exported, distribute, have distributed, publicly and privately perform, display and transmit derivative works and reproductions thereof, and to sublicense all of these rights for Snowflake's benefit and to sublicense such rights for Snowflake's benefit.

8.6 Notwithstanding the foregoing, if the Deliverables consist of Seller's training materials developed without the use of any Snowflake Intellectual Property, Snowflake's license to said materials shall be limited to Snowflake's internal business operations unless another license is granted by Seller. Further, if the Deliverables include entertaining, speaking, facilitating, hosting, lecturing, performing, etc. for a Snowflake hosted event, meeting or conference, Snowflake's license to the goods and services shall include the right to use Seller's likeness and performance for Snowflake's internal business purposes and to broadcast, web cast or otherwise disseminate Seller's performance and likeness, in whole or in part, live or recorded, with or without audio or video, or with different audio or video throughout the world on all media, channels and manner of distribution now or hereafter known.

8.7 If Seller incorporates Intellectual Property owned by any third party into the Deliverables, it shall disclose all such Intellectual Property or open source software to Snowflake prior to commencing the services described herein and shall secure all required documentation, licenses, notices, etc. for Snowflake's benefit. Snowflake shall have no obligation to accept or pay for any goods and services provided hereunder that contain such third-party Intellectual Property if Seller does not disclose same as required herein.

9. Indemnification

9.1. Intellectual Property. Seller shall indemnify Buyer and Buyer's customers and hold them harmless against any costs, expenses, losses, damages or liabilities incurred because of actual or alleged infringement of any patent, copyright, trade secret, trademark or other intellectual property right arising out of the use or sale by Buyer or use by Buyer's customers of any Deliverables. Buyer shall notify Seller of any such claim or demand and Seller shall defend any suits based thereon. If an injunction issues as a result of any such claim, Seller agrees at its expense and at Buyer's option to: (i) procure for Buyer the right to continue using items ordered hereunder; (ii) replace such goods with noninfringing items; (iii) modify the goods so they become noninfringing; or (iv) refund to Buyer the amount paid for the items and bear all liabilities, costs and expenses related to discarding them or returning them to Seller.

9.2 General. Seller will indemnify, defend and hold Buyer, its officers, directors, resellers, employees, agents and customers harmless from and against any and all losses, liabilities, costs, claims, damages and expenses (including attorneys' fees and costs) arising out of or

related to this PO including but not limited to the provision of the Deliverables or Seller's breach of any term or provision of this PO including any provision relating to Snowflake's policies or personal data or privacy obligations.

10. Limitation of Liability: TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL SNOWFLAKE'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS PO EXCEED THE TOTAL AMOUNT ACTUALLY PAID OR PAYABLE BY SNOWFLAKE TO SELLER FOR THE APPLICABLE GOODS OR SERVICES PROVIDED UNDER THIS PO NOR WILL SNOWFLAKE OR ITS RELATED LEGAL ENTITIES BE LIABLE FOR ANY LOST REVENUES, LOST PROFITS, INCIDENTAL, DIRECT, INDIRECT, CONSEQUENTIAL, SPECIAL OR PUNITIVE DAMAGES, EVEN IF ADVISED OF THE POSSIBILITY THEREOF.

11. Assignment: This PO is not assignable by Seller without Buyer's written consent. Any purported assignment without the requisite consent shall be of no effect. Should Seller elect to use subcontractors to fulfill portions of its obligations hereunder, it shall obtain Snowflake's written consent for the use of said subcontractor.

12. Compliance with Laws and Policy

12.1. Seller will comply with the applicable provisions of all federal, state or local laws or ordinances and all orders, rules and regulations issued thereunder, including without limitation, any local law or regulations relating to the privacy, security, integrity and availability of personal data, or restrictions on the Processing, movement or transfer of such personal data ("Privacy Laws") and the Foreign Corrupt Practices Act 15 U.S.C. Section78dd-1 et seq.

12.2 Seller will comply with all applicable Snowflake policies, as updated from time to time including Snowflake's Privacy Policy (https://www.snowflake.com/privacy-policy/) and Security Policy (https://www.snowflake.com/wp-content/uploads/2018/07/2018July12-Snowflake-Security-Policy.pdf). If Seller provides any personal data to Buyer, it represents and warrants that it has collected all such data in a manner consistent with all applicable law and that it has all required consent to share such data with Buyer.

13. Governing Law: This PO is governed by and construed in accordance with the laws of the State of California without regard to its conflict of law provisions. Seller agrees that the state and federal courts in San Mateo, California will have the exclusive jurisdiction and venue over any claims arising out of or related to this PO.

Unless Vendor has signed a Snowflake Master Vendor Agreement, this Purchase Order ("PO") and any attachments are the sole agreement between Snowflake, Inc. ("Snowflake" or "Buyer") and any of its subsidiaries or affiliates regarding the goods or services specified in this PO. In the event of any conflict between the terms set forth herein and any Master Vendor Agreement the parties have entered, the terms of the Master Vendor Agreement shall control.